

Court No. - 29

Case :- WRIT - C No. - 30486 of 2019

Petitioner :- Smt. Chandra Prabha Devi

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vinod Kumar, Vinod Kumar
Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Learned counsel for the petitioner is permitted to implead the Executive Engineer, Dakshinchal Vidyut Vitran Nigam Limited, Hathras as respondent no.5.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondents no.2 and 3.

The petitioner has preferred this petition against the recovery citation dated 27.07.2019 for a sum of Rs.3,56,849/- as electricity dues.

Submission of the counsel for the petitioner is that he has been wrongly billed and that his grievance regarding it has not been considered by the Executive Engineer.

Sri Baleshwar Chaturvedi accepts that it is a case of dispute of electricity bill which can be resolved by the Executive Engineer in accordance with Clause 6.5 of U.P. Electricity Supply Code, 2005.

The petitioner in this connection has submitted a representation dated 10.07.2018 to the Executive Engineer.

Accordingly, we ***dispose off*** of the writ petition with the direction to the Executive Engineer to consider and decide the aforesaid representation of the petitioner in accordance with law after giving full opportunity of hearing to the petitioner most expeditiously if possible within a period of six weeks.

The recovery shall abide by the decision of the Executive Engineer.

Order Date :- 26.9.2019

S.Sharma